

Form No. INC-33



Form language

☒ English

☐ Hindi

e-MOA (e-Memorandum of Association)

[Pursuant to Schedule I (see Sections 4 and 5) to the Companies Act, 2013]]

Refer instruction kit for filing the form

*All fields marked in * are mandatory*

* Table applicable to company as notified under schedule I of the Companies Act, 2013

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES

B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING A SHARE CAPITAL

C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING A SHARE CAPITAL

D - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND NOT HAVING SHARE CAPITAL

E - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND HAVING SHARE CAPITAL)

A - MEMORANDUM OF
ASSOCIATION OF A COMPANY
LIMITED BY SHARES

Table A/B/C/D/E

1 The name of the company is

KUDRA AGRO INDIA PRIVATE
LIMITED

2 The registered office of the company will be situated in the State of

Bihar

3 (a) The objects to be pursued by the company on its incorporation are:

To carry on the business of processing biomass in all its forms, including but not limited to manufacturing, processing, production, generation, conversion, distribution, sale, and supply of biomass-based renewable energy, power, fuel, and allied products such as bio-coal pellets, briquettes, biogas, ethanol, biodiesel, biomass pulp, animal fodder, bio-fertilizers, and other bio-energy and bio-based products.

To engage in the production, processing, and value addition of agricultural produce, including but not limited to tilhan, dalhan, edible seeds, honey, milk and dairy products, oils, and fats.

To establish and operate a sustainable pyrolysis-based system for processing various waste materials into renewable energy and valuable by-products for commercial distribution

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

To acquire, purchase, lease, or otherwise obtain, develop, manage, and maintain land, buildings, warehouses, plants, machinery, apparatus, farms, and other infrastructure necessary for the production, collection, storage, processing, and distribution of raw materials (including biomass, agricultural residue, produce, and pyrolysis feedstock) and finished products; and to lease, hire-purchase, or otherwise dispose of any such property belonging to the Company, including financing purchases by way of loans or hire-purchase.

To enter into contracts, agreements, and collaborations with farmers, cooperatives, suppliers, aggregators, and other stakeholders for the procurement, collection, and transportation of agricultural biomass, agricultural residue, agricultural produce, and pyrolysis feedstock; and to deal in raw materials, chemicals, additives, and other inputs required for manufacturing and processing activities.

To manufacture, extract, process, refine, extrude, delint, and blend all forms of biomass-based products (including fuels, power, pellets, gas, and ethanol), pyrolysis feedstock, and agricultural value-added products (including pulses, edible seeds, oils, fats, protein meals, animal feed, and bio-fertilizers) and their by-products; and to import and export such materials.

To undertake or promote scientific and technical research, establish and maintain research facilities, and collaborate with research institutions, universities, and technology providers for developing and commercializing innovative processes and products related to agricultural biomass utilization and value

added processing; and to apply for, obtain, acquire, protect, renew, and commercialize patents, trademarks, copyrights, know-how, and licenses.

To apply for, obtain, and maintain all necessary licenses, permits, certifications, quotas, and authorizations from Central, State, or Local Governments or other authorities for manufacturing, processing, import, export, distribution of products, and pursuit of the Company's main objects.

To undertake activities for waste management, environmental protection, pollution control, and sustainability initiatives in support of the Company's operations.

Subject to the provisions of the Companies Act, 2013, to raise capital; secure loans; borrow or receive money on deposit or loan with or without interest; issue debentures, bonds, and other securities; and secure repayment thereof by mortgage, pledge, or charge on the Company's property, assets, or revenue.

To invest surplus funds (including in fixed deposits with other entities as determined from time to time); create and maintain reserve funds, sinking funds, provident funds, and other special funds; and guarantee or indemnify payments or contract performance by any person or company.

To open and operate bank accounts of any type (including overdraft and cash credit); draw, make, accept, endorse, discount, execute, and issue bills of exchange, promissory notes, debentures, and other negotiable instruments or securities.

To enter into partnerships, joint ventures, or profit-sharing arrangements with any person,

company, or organization; and arrange collaborations with foreign or Indian entities for technical know-how or assistance.

To acquire, amalgamate with, or demerge any person, firm, or company carrying on similar business; and to sell, improve, manage, develop, exchange, lease, mortgage, or dispose of the Company's undertaking, property, or rights.

To vest any Company property, rights, or interests in trustees on behalf of or for the Company's benefit, with or without declared trust; and to undertake and execute trusts.

To institute, conduct, defend, or compound legal proceedings by or against the Company; refer disputes to arbitration in India or abroad; and observe and enforce awards.

To employ, remunerate, and train (in India or abroad) employees or candidates; and establish contributory or non-contributory pensions, superannuation, provident, gratuity funds, and insurance for employees and directors.

To promote the Company's business through advertising in press, magazines, journals, circulars; granting prizes, rewards, and donations; and engaging in domestic and international marketing and branding, subject to the Companies Act, 2013.

To pay all preliminary expenses, costs, charges, formation costs, registration costs, and capital issue expenses (including brokerage and underwriting commissions) from Company funds.

To insure Company property; indemnify against liability or loss;

carry out objects worldwide as principal, agent, trustee, or contractor, alone or with others; apply moneys (including premiums or forfeited shares) as reserves or bonus shares, subject to the Act; and distribute property in specie on winding up, subject to the Act.

4 The liability of the member(s) is limited, and this liability is limited to the amount unpaid if any, on the shares held by them.

5 Every member of the company undertakes to contribute:

(i) to the assets of the company in the event of its being wound up while he is a member, or within one year after he ceases to be a member, for payment of the debts and liabilities of the company or of such debts and liabilities as may have been contracted before he ceases to be a member; and

(ii) to the costs, charges and expenses of winding up (and for the adjustment of the rights of the contributories among themselves), such amount as may be required, not exceeding * rupees.

(iii) The share capital of the company is rupees, divided into

200000	Equity Share	Shares of	10	Rupees each	
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☐ We, the several persons, whose names and address are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association, and we respectively agree to take the number of shares in the capital of the company set against our respective names:

☐ I, whose name and address is given below, am desirous of forming a company in pursuance of this memorandum of association and agree to take all the shares in the capital of the company:

☐ We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details

S. No.	*Name, Address, Description and Occupation	DIN / PAN / Passport number	No. of shares taken	DSC	Dated
1	AMIT KUMAR Saraswati Shishu Mandir Village: Sakri, Post: Kudra Koura Bihar 821108 Kudra Kaimur (Bhabua) India	B*R*K*9*3*	50000 Equity,0 Preferenc	AMIT KUMAR Digitally signed by AMIT KUMAR Date: 2026.02.17 13:36:46 +05'30'	12/02/2026
2	BRAJ BHUSHAN RASTOGI C/O Yashoda Medical Agency Kudra Bazaar, Post: Kudra Kudra Bihar 821108 Kudra Bazar Kaimur (Bhabua) India	A*R*R*0*2*	50000 Equity,0 Preferenc	Braj Bhushan Rastogi Digitally signed by Braj Bhushan Rastogi Date: 2026.02.17 13:34:33 +05'30'	12/02/2026
3	VINAY KUMAR RASTOGI F-1 Tower Flat No - 1001 Eco Village-1 Super Tech, Plot -08 Sector -1, VTC Bishrakh Uttar Pradesh 201306 Bistrakh Gautam Buddha Nagar India	A*N*R*8*7*	50000 Equity,0 Preferenc	Vinay Kumar Rastogi Digitally signed by Vinay Kumar Rastogi Date: 2026.02.17 13:35:09 +05'30'	12/02/2026
Total shares taken			150000 Equity,0 Preference		

Signed before me

Membership type of the witness (ACA/FCA/ACS/FCS/ACMA/FCMA)	*Name of the witness	*Address, Description and Occupation	DIN / PAN / Passport number / Membership number	DSC	Dated
ACA	SANDEEP KUMAR DIDWANIYA	JAHANABAD KUDRA	5*6*4*	SANDEEP KUMAR DIDWANIYA Digitally signed by SANDEEP KUMAR DIDWANIYA Date: 2026.02.17 13:37:01 +05'30'	12/02/2026

7 Shri / Smt Of resident of aged years shall be the nominee in the event of death of the sole member.